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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S EVIDENTIARY
OBJECTIONS TO DEFENDANTS'
DECLARATIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

Plaintiff submits the following evidentiary objections to the declarations filed by Defendants in support of the Demurrer and Special Motion to Strike:

- **Clerk File No. 10152298:** Declaration in Support of Anti-SLAPP Motion
- **Clerk File No. 10157177:** Declaration of Michael R. Chambers in Support of Demurrer
- **Clerk File No. 10057589:** Meet-and-Confer Declaration

These objections are submitted in the CRC 3.1354 two-column format (by analogy to summary judgment practice) for judicial convenience.

II. LEGAL STANDARDS FOR EVIDENTIARY OBJECTIONS

A. Personal Knowledge Required

Under Evidence Code section 702, a witness may only testify to matters within personal knowledge. A declaration submitted on a dispositive motion must affirmatively show, on its face, that the declarant has personal knowledge of the facts stated; conclusory recitals are insufficient. (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761 [declaration on motion must be based on personal knowledge and must affirmatively show competence to testify]; Marriage of Heggie (2002) 99 Cal.App.4th 28, 30 [declarations not made on personal knowledge or containing inadmissible material cannot support adjudication].)

B. No Legal Conclusions or Argument

Under Evidence Code section 800, lay witnesses may only testify to facts, not legal conclusions. Declarations may not be used to smuggle legal argument into the evidentiary record, and characterizations of what the law requires, what a prior court “decided,” or what privilege applies are for the Court, not the declarant.

C. Hearsay Inadmissible

Under Evidence Code section 1200, hearsay is inadmissible unless an exception applies. Recitation of out-of-court statements by successor counsel, opposing counsel, or third parties offered for their truth is hearsay.

1 **D. Statutory Form Requirements (Code Civ. Proc. § 2015.5)**

2 A declaration is only competent evidence if it complies with Code of Civil Procedure section
3 2015.5, including certification under penalty of perjury under the laws of California, date and
4 place of execution, and signature of the declarant. Declarations failing to satisfy § 2015.5 are not
5 “evidence” and cannot support an Anti-SLAPP prong-one or prong-two showing.

6 **E. Strategic Framing of These Objections**

7 These objections are not template boilerplate; each targets a discrete evidentiary vice that, if sus-
8 tained, removes a specific factual predicate on which Defendants’ motions depend:

- 9 1. **No personal knowledge of what successor counsel knew.** Defendants cannot, through their
10 own declarants, testify to what PSA (successor counsel) understood, received, reviewed, or
11 relied upon. Those are facts within PSA’s knowledge, not Defendants’.
- 12 2. **No competent basis for file-transfer completeness claim.** A bare assertion that the file was
13 “complete” or “properly transferred” lacks foundation unless the declarant identifies what the
14 file contained, what was indexed, what production history (including discovery responses,
15 deposition transcripts, and prior court orders) was conveyed, and by what mechanism.
- 16 3. **No declaration converts disputed process facts into adjudicated facts.** The two-phase
17 fraud pattern — (a) what happened during substitution and (b) what the trial court was told
18 — is a live factual dispute. A declaration cannot retroactively transform disputed process
19 history into “adjudicated” fact; only the record of what was actually presented and ruled upon
20 can do that.

21 _____
22 **III. OBJECTIONS TO ANTI-SLAPP DECLARATION (CLERK FILE**
23 **NO. 10152298)**

- 24 1. **Citation:** p.2, ll.3-5 — **Objectionable material:** “All conduct in this case was privileged
25 litigation conduct undertaken in the course of defending our client.” **Objection(s):** Legal
26 conclusion; argument. **Grounds:** Evid. Code § 800. Whether conduct was “privileged” is a
27 legal determination for the Court, not a fact within declarant’s personal knowledge. **Proposed**

1 **remedy:** Strike / Sustain.

- 2 2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff’s claims are barred by the liti-
3 gation privilege.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800.
4 Legal bar analysis is argument, not testimony. **Proposed remedy:** Strike / Sustain.
- 5 3. **Citation:** p.3, ll.1-4 — **Objectionable material:** “The evidence was presented to the jury
6 and the jury decided in favor of our client.” **Objection(s):** Lack of foundation; improper
7 merits evidence; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. What “the
8 jury decided” is not within declarant’s personal knowledge; the trial record — not a summary
9 declaration — speaks for itself. **Proposed remedy:** Strike / Disregard.
- 10 4. **Citation:** p.3, ll.6-8 — **Objectionable material:** “Plaintiff had a full and fair opportunity
11 to present his case.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid.
12 Code §§ 702, 800. Whether opportunity was “full and fair” is a legal determination. **Proposed**
13 **remedy:** Sustain / Disregard.
- 14 5. **Citation:** p.3, ll.10-12 — **Objectionable material:** “There was no fraud or misrepresenta-
15 tion.” **Objection(s):** Legal conclusion; ultimate issue. **Grounds:** Evid. Code § 800. Whether
16 fraud occurred is the ultimate issue for trial. **Proposed remedy:** Strike / Sustain.
- 17 6. **Citation:** p.4, ll.2-5 — **Objectionable material:** “Plaintiff’s theory is speculative and with-
18 out merit.” **Objection(s):** Legal argument; improper opinion. **Grounds:** Evid. Code §§ 800,
19 802. Merit determinations are for the Court. **Proposed remedy:** Strike / Sustain.
- 20 7. **Citation:** p.4, ll.8-10 — **Objectionable material:** Characterization of FAC allegations. **Ob-**
21 **jection(s):** Improper argument. **Grounds:** Declaration cannot be used to argue how FAC
22 should be characterized; on Anti-SLAPP prong two, FAC allegations are accepted as true.
23 **Proposed remedy:** Disregard / Sustain.
- 24 8. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The file transfer was proper and com-
25 plete.” **Objection(s):** Lack of foundation; contradicts FAC; secondary evidence. **Grounds:**
26 Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of file-transfer
27 contents; completeness claim must be supported by the underlying index/log, not a bare sum-
28 mary. **Proposed remedy:** Strike / Sustain.

1 9. **Citation:** p.5, ll.5-8 — **Objectionable material:** Any statement describing what PSA (suc-
2 cessor counsel) received, understood, or relied upon. **Objection(s):** Lack of personal knowl-
3 edge; hearsay. **Grounds:** Evid. Code §§ 702, 1200; Bozzi, 186 Cal.App.4th at 761. Declarant
4 cannot testify to what successor counsel knew or believed. **Proposed remedy:** Strike / Sus-
5 tain.

7 **IV. OBJECTIONS TO DEMURRER / CHAMBERS DECLARATION (CLERK**
8 **FILE NO. 10157177)**

- 9 1. **Citation:** p.2, ll.2-4 — **Objectionable material:** “Plaintiff’s complaint fails to state a cause
10 of action.” **Objection(s):** Legal conclusion; improper argument. **Grounds:** Evid. Code §
11 800. Whether complaint states a cause of action is a legal question. **Proposed remedy:** Strike
12 / Sustain.
- 13 2. **Citation:** p.2, ll.6-8 — **Objectionable material:** “The allegations are conclusory and spec-
14 ulative.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Pleading
15 sufficiency is for the Court. **Proposed remedy:** Strike / Sustain.
- 16 3. **Citation:** p.2, ll.10-12 — **Objectionable material:** “This Court lacks jurisdiction to hear
17 this matter.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800. Jurisdictional
18 analysis is legal, not factual. **Proposed remedy:** Strike / Sustain.
- 19 4. **Citation:** p.3, ll.1-3 — **Objectionable material:** “All of the matters complained of were
20 already adjudicated at trial.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:**
21 Evid. Code §§ 702, 800. What was “adjudicated” requires legal analysis of issues actually
22 decided; Marriage of Heggie, 99 Cal.App.4th at 30. **Proposed remedy:** Strike / Sustain.
- 23 5. **Citation:** p.3, ll.5-7 — **Objectionable material:** “Plaintiff is collaterally estopped from
24 relitigating these issues.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800.
25 Collateral estoppel is a legal doctrine requiring Lucido/Crowley analysis. **Proposed remedy:**
26 Strike / Sustain.
- 27 6. **Citation:** p.3, ll.9-11 — **Objectionable material:** Hearsay recitation of statements by suc-
28 cessor counsel. **Objection(s):** Hearsay; lack of personal knowledge. **Grounds:** Evid. Code

§§ 702, 1200. Out-of-court statements offered for truth; declarant cannot testify to what PSA said or understood. **Proposed remedy:** Strike / Sustain.

7. **Citation:** p.4, ll.2-4 — **Objectionable material:** “We transferred the complete file to successor counsel.” **Objection(s):** Lack of specific foundation; best/secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of what “complete file” means, what was indexed, and what production history was conveyed; underlying transfer log/index not attached. **Proposed remedy:** Strike / Sustain.

8. **Citation:** p.4, ll.6-8 — **Objectionable material:** “Plaintiff had access to all relevant evidence.” **Objection(s):** Lack of foundation; legal conclusion. **Grounds:** Evid. Code §§ 702, 800. What Plaintiff “had access to” is not within declarant’s personal knowledge. **Proposed remedy:** Strike / Sustain.

9. **Citation:** p.4, ll.10-13 — **Objectionable material:** Any statement describing what was conveyed to PSA regarding CSAA discovery responses, deposition testimony, or prior court orders. **Objection(s):** Lack of foundation; best/secondary evidence; hearsay. **Grounds:** Evid. Code §§ 403, 702, 1200, 1521. Foundation absent as to what the file actually contained and what specifically was conveyed; underlying documents not produced. **Proposed remedy:** Strike / Sustain.

10. **Citation:** p.4, ll.15-18 — **Objectionable material:** Any statement that contradicts Mr. Chambers’s prior discovery responses, deposition testimony, or prior court filings regarding the scope, contents, or timing of the file transfer. **Objection(s):** Sham-affidavit / contradiction of prior sworn testimony; lack of credibility foundation. **Grounds:** D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524–1525. A declaration contradicting prior sworn discovery or deposition testimony cannot create a triable — or Anti-SLAPP prong-two — evidentiary showing. **Proposed remedy:** Disregard / Strike.

11. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The FAC is an improper collateral attack.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether FAC constitutes collateral attack requires legal analysis. **Proposed remedy:** Strike / Sustain.

V. OBJECTIONS TO MEET-AND-CONFER DECLARATION (CLERK FILE NO. 10057589)

1. **Citation:** p.2, ll.3-5 — **Objectable material:** Characterization of meet-and-confer correspondence. **Objection(s):** Best evidence / secondary evidence rule; improper argument. **Grounds:** Evid. Code §§ 1521–1523. Correspondence speaks for itself; summary without attachment inadmissible. **Proposed remedy:** Strike / Disregard.
2. **Citation:** p.2, ll.7-9 — **Objectable material:** “Plaintiff refused to dismiss his frivolous claims.” **Objection(s):** Legal conclusion; argumentative. **Grounds:** Evid. Code § 800. Whether claims are “frivolous” is a legal determination. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-3 — **Objectable material:** Characterization of Plaintiff’s legal positions. **Objection(s):** Improper argument. **Grounds:** Declarations may not argue legal merit of opposing party’s positions. **Proposed remedy:** Strike / Disregard.
4. **Citation:** Throughout — **Objectable material:** Any portion of declaration not executed in compliance with Code Civ. Proc. § 2015.5 (missing date, place, or proper perjury certification). **Objection(s):** Non-compliant declaration. **Grounds:** Code Civ. Proc. § 2015.5; Kulshrestha v. First Unum Life Ins. Co. (2003) 29 Cal.4th 1006, 1021–1022. Non-compliant declarations are not competent evidence. **Proposed remedy:** Disregard in full.

VI. SUMMARY OF OBJECTIONS BY CATEGORY

A. Legal Conclusions (Evidence Code § 800)

The following statements are impermissible legal conclusions: - “privileged litigation conduct” - “claims are barred” - “full and fair opportunity” - “no fraud or misrepresentation” - “fails to state a cause of action” - “collaterally estopped” - “improper collateral attack” - “frivolous claims”

Ruling requested: SUSTAIN all objections. These are legal conclusions for the Court, not facts within declarant’s personal knowledge.

1 **B. Lack of Personal Knowledge (Evidence Code § 702)**

2 The following statements lack foundation for personal knowledge: - What “the jury decided” -
3 What Plaintiff “had access to” - What was “adjudicated” - What the “complete file” contained -
4 What successor counsel (PSA) received, understood, or relied upon

5 **Ruling requested:** SUSTAIN all objections. (Bozzi, 186 Cal.App.4th at 761; Marriage of Heggie,
6 99 Cal.App.4th at 30.)

7 **C. Hearsay (Evidence Code § 1200)**

8 Statements reciting out-of-court statements by third parties (including successor counsel) are hearsay.

9 **Ruling requested:** SUSTAIN hearsay objections.

10 **D. Improper Argument**

11 Declarations may not be used to argue legal positions or characterize opposing party’s pleadings.

12 **Ruling requested:** SUSTAIN objections to argumentative material.

13 **E. Best Evidence / Secondary Evidence Rule (Evid. Code §§ 1521–1523)**

14 Any declaration that summarizes, characterizes, or purports to describe the contents of (a) the
15 client-file transfer from Chambers/CSK to successor counsel PSA, (b) the production log or discovery-
16 responses index, (c) prior court orders, rulings, or transcripts, or (d) deposition testimony, **without**
17 **attaching the underlying writing**, violates the secondary-evidence rule. Oral or declaration-based
18 summaries of writings are inadmissible to prove the content of those writings where the originals
19 (or authenticated copies) are available and have not been produced. (Evid. Code §§ 1521 [sec-
20 ondary evidence rule], 1522 [exclusion where genuine dispute as to material terms], 1523 [oral
21 testimony inadmissible to prove content of writing].)

22 **Specific application:** Defendants’ declarations repeatedly reference the “complete file,” what was
23 “transferred,” what was “adjudicated,” and what was “presented to the jury” — all content of
24 writings — without attaching the transfer index, the trial record, or the underlying orders. These
25 portions must be excluded.

26 **Ruling requested:** SUSTAIN. Strike all secondary-summary passages and exclude from eviden-
27 tiary consideration on both the Demurrer and the Anti-SLAPP motion.

1 **F. Non-Compliance with Code Civ. Proc. § 2015.5**

2 Any declaration lacking proper perjury certification, date, place, or signature under § 2015.5 is not
3 competent evidence and must be disregarded in its entirety.

4 **G. Failure of Burden (Global)**

- 5 • **Because Defendants’ declarations consist entirely of inadmissible legal conclusions and**
6 **arguments without foundation, Defendants have failed to introduce any admissible evi-**
7 **dence to support their Anti-SLAPP motion. Consequently, Plaintiff’s factual allegations**
8 **regarding the two-phase fraud pattern stand entirely uncontradicted in the evidentiary**
9 **record.**

10 **H. Evidence Code § 1235 Impeachment by Prior Inconsistent Statement**

11 For each defense declaration that claims “the 911 was not produced,” “authenticity unknown,” or
12 equivalent denials, Plaintiff invokes the Plaintiff-preservation transcript pincites as **impeachment**
13 **by prior inconsistent statement** under Evidence Code § 1235. This converts the transcript mate-
14 rial from background to admissible substantive evidence.

- 15 • **Declaration assertion:** “Our office did not receive the 911 call until the day of the MSC.”
16 **Impeaching passage:** Feb. 18, 2025, p. 181: “all this stuff has been in his possession since
17 August” (same attorney, same hearing). **§ 1235 effect:** Substantive evidence of receipt; im-
18 peaches the “news to me” posture.
- 19 • **Declaration assertion:** “No idea where this 911 call log came from” (MIL 17). **Impeaching**
20 **passage:** Apr. 16, 2025, RT 7, p. 213: “They were provided by Dolan.” **§ 1235 effect:**
21 Substantive evidence of Dolan origin; impeaches “unknown provenance.”
- 22 • **Declaration assertion:** “Not anything that we received as part of the subpoena.” **Impeaching**
23 **passage:** Feb. 1, 2024 Complex subpoena (Order No. CA1147102-021) requesting identical
24 materials. **§ 1235 effect:** Documentary contradiction; defense subpoenaed what they now
25 deny receiving.
- 26 • **Declaration assertion:** “Authenticity unknown.” **Impeaching passage:** Apr. 17, 2025, RT 8,
27 p. 108: Abdelhalim: “Yes. That is my voice.” **§ 1235 effect:** Party-opponent authentication;
28 waiver of authenticity dispute.

1 **Ruling requested:** Sustain objections and deem the transcript passages admissible as substantive
2 evidence under § 1235 to impeach each corresponding declaration assertion.

4 **VIII. ESTOPPEL, WAIVER, AND AUTHENTICATION BY ACQUIESCENCE AS EVIDENTIARY BARS TO DEFENDANTS' DECLARATIONS**

6 **A. The Triangulation Framework**

7 The evidentiary objections set forth in Sections III–VI above operate in conjunction with three
8 independent estoppel doctrines that foreclose Defendants' ability to introduce any competent evi-
9 dence disputing authenticity, receipt, or provenance of the 911/BWC/CAD materials:

- 10 1. **Evidence Code § 623 (Estoppel by Silence):** Defendants remained silent for 883 days re-
11 garding the authenticity and provenance of the 911 audio, body-worn camera footage, and
12 CAD logs—then asserted, on the eve of trial, that these materials were of “unknown prove-
13 nance” and “news to me.” This was silence in the face of materials whose content included
14 a direct party-opponent admission, an operator-elicited affirmative response, Plaintiff's own
15 voice, and independent eyewitness corroboration—core liability evidence that a reasonable
16 attorney would not leave unchallenged for 883 days if authenticity were genuinely in dispute.
17 Under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493, Defendants' silence where
18 speech was expected constitutes conduct on which Plaintiff reasonably relied. Defendants are
19 estopped from now contesting what they acquiesced to for nearly two and a half years.
- 20 2. **Evidence Code § 1414(b) (Authentication by Acquiescence):** Defendants treated the mate-
21 rials at issue—specifically, the 911 audio (including Abdelhalim's admissions, the operator's
22 “you hit a pedestrian” exchange and his affirmative response, and Plaintiff's own recorded
23 voice identifying the striking vehicle) and the BWC (including the independent Rosemond
24 eyewitness statement and Plaintiff's own on-scene statement)—as authentic through: (a) **re-**
25 **ceipt in August–September 2022 discovery and sworn deposition course** (Rosario de-
26 position August 18, 2022; Abdelhalim deposition September 30, 2022—Chambers present;
27 911-related testimony) **without a timely written authenticity or provenance challenge in**
28 **the 883-day window**; (b) file transfer to successor counsel on May 4, 2023; (c) issuance of

1 the February 1, 2024 Reyna Compex subpoena for the identical materials; and (d) active trial
2 curation of the body-worn camera footage (“five videos . . . pared down to 8 or 9 minutes”).
3 Under § 1414(b), this course of conduct authenticates the materials and waives any authen-
4 ticity challenge asserted for the first time in declarations supporting the current motions.

- 5 3. **Sham-Affidavit Rule (D’Amico, Scalf):** If any portion of the Chambers declaration or the
6 Anti-SLAPP declaration contradicts Chambers’ prior discovery responses, deposition testi-
7 mony, or the file-transfer records regarding what was conveyed to successor counsel, the
8 sham-affidavit rule bars reliance on those contradictory statements to create a triable issue.
9 D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log
10 Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524–1525.

11 **B. Application to the “Complete File” Assertions**

12 The Chambers declaration’s assertion that the file was “complete” or “properly transferred” (Clerk
13 File No. 10157177, approximately p. 4, ll. 2–4) is inadmissible on three independent grounds:

- 14 1. **Lack of Foundation (Evid. Code § 702):** The declaration does not establish what specific
15 production history was conveyed, what index or transfer log was used, or how declarant
16 verified “completeness.”
- 17 2. **Estoppel by Silence:** If the file was indeed “complete,” why did successor counsel represent
18 in MIL No. 17 that “Defendant has no idea where this 911 call log or audio recording came
19 from”? The 883-day silence—followed by the “unknown provenance” representations—is
20 irreconcilable with a “complete transfer” position. Defendants cannot now introduce dec-
21 larations claiming completeness when their own court-facing representations assumed the
22 opposite.
- 23 3. **Authentication by Acquiescence:** The materials at issue were treated as authentic from
24 September 2022 through January 2025. A declaration asserting that the materials were some-
25 how “not properly conveyed” contradicts the defense’s own course of conduct and is barred
26 under § 1414(b).

1 **C. Application to the “News to Me” Contradiction**

2 The April 16, 2025 admission—“Sure. They were provided by Dolan. He has had them for what-
3 ever, sure.”—is irreconcilable with the February 18, 2025 “news to me” statement. Any declaration
4 that attempts to rehabilitate the “news to me” position is:

- 5 1. **Contradicted by the certified transcript** and therefore inadmissible under the sham-affidavit
6 rule;
- 7 2. **Barred by judicial estoppel** under Jackson v. County of Los Angeles (1997) 60 Cal.App.4th
8 171, 183 because Position A (“news to me”) was accepted by the tribunal and Position B
9 (“provided by Dolan”) is totally inconsistent;
- 10 3. **Inadmissible hearsay** to the extent it purports to recite what successor counsel understood
11 or believed (Evid. Code § 1200).

12 **D. Ruling Requested**

13 The Court should: (1) sustain all evidentiary objections set forth in Sections III–VI; (2) deem
14 the 911/BWC/CAD materials authenticated by acquiescence under Evidence Code § 1414(b); (3)
15 estop Defendants from contesting authenticity, receipt, or provenance under Evidence Code § 623
16 and judicial estoppel; and (4) disregard any declaration assertions regarding “complete transfer” or
17 “no knowledge” as barred by the sham-affidavit rule.

18
19 **VII. CONCLUSION**

20 Defendants’ declarations are improperly packed with legal conclusions, argument, secondary-
21 evidence summaries, and statements beyond declarants’ personal knowledge. Declarations cannot
22 substitute for record proof of what was actually conveyed during the attorney-substitution process
23 and what the trial court was told and relied upon. Those are record facts, provable only through
24 the record itself — transfer indices, discovery responses, deposition transcripts, minute orders,
25 and reporter’s transcripts — not through after-the-fact characterizations by interested declarants.
26 These objections preserve the record and request the Court exclude all inadmissible material from
27 consideration on both the Demurrer and the Special Motion to Strike.

28 **DATED:** April 16, 2026

1 Respectfully submitted,

2 _____
3 FRANCISCUS DYLAN ROSARIO
4 _____

5 **APPENDIX: CRC 3.1354 FORMAT SUMMARY (LIST)**

6 **Declaration 10152298 (Anti-SLAPP)**

- 7 1. Obj. 1 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (legal conclusion) —
8 **Proposed remedy:** Strike.
- 9 2. Obj. 2 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
10 **Proposed remedy:** Strike.
- 11 3. Obj. 3 — **Page:line:** p.3, ll.1-4 — **Ruling requested:** SUSTAIN (lack of foundation /
12 secondary evidence) — **Proposed remedy:** Disregard.
- 13 4. Obj. 4 — **Page:line:** p.3, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
14 **Proposed remedy:** Disregard.
- 15 5. Obj. 5 — **Page:line:** p.3, ll.10-12 — **Ruling requested:** SUSTAIN (ultimate issue) —
16 **Proposed remedy:** Strike.
- 17 6. Obj. 6 — **Page:line:** p.4, ll.2-5 — **Ruling requested:** SUSTAIN (legal argument) — **Pro-**
18 **posed remedy:** Strike.
- 19 7. Obj. 7 — **Page:line:** p.4, ll.8-10 — **Ruling requested:** SUSTAIN (improper argument) —
20 **Proposed remedy:** Disregard.
- 21 8. Obj. 8 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (foundation / secondary
22 evidence) — **Proposed remedy:** Strike.
- 23 9. Obj. 9 — **Page:line:** p.5, ll.5-8 — **Ruling requested:** SUSTAIN (no PK of PSA knowledge;
24 hearsay) — **Proposed remedy:** Strike.

25 **Declaration 10157177 (Demurrer / Chambers)**

- 26 10. Obj. 10 — **Page:line:** p.2, ll.2-4 — **Ruling requested:** SUSTAIN (legal conclusion) —
27 **Proposed remedy:** Strike.
- 28 11. Obj. 11 — **Page:line:** p.2, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —

1 **Proposed remedy:** Strike.

2 12. Obj. 12 — **Page:line:** p.2, ll.10-12 — **Ruling requested:** SUSTAIN (legal conclusion) —
3 **Proposed remedy:** Strike.

4 13. Obj. 13 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion / foun-
5 dation) — **Proposed remedy:** Strike.

6 14. Obj. 14 — **Page:line:** p.3, ll.5-7 — **Ruling requested:** SUSTAIN (legal conclusion) —
7 **Proposed remedy:** Strike.

8 15. Obj. 15 — **Page:line:** p.3, ll.9-11 — **Ruling requested:** SUSTAIN (hearsay / no PK) —
9 **Proposed remedy:** Strike.

10 16. Obj. 16 — **Page:line:** p.4, ll.2-4 — **Ruling requested:** SUSTAIN (foundation / secondary
11 evidence) — **Proposed remedy:** Strike.

12 17. Obj. 17 — **Page:line:** p.4, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
13 **Proposed remedy:** Strike.

14 18. Obj. 18 — **Page:line:** p.4, ll.10-13 — **Ruling requested:** SUSTAIN (foundation / 2° evi-
15 dence re PSA conveyance) — **Proposed remedy:** Strike.

16 19. Obj. 19 — **Page:line:** p.4, ll.15-18 — **Ruling requested:** SUSTAIN (sham affidavit / con-
17 tradiction of prior sworn testimony) — **Proposed remedy:** Disregard.

18 20. Obj. 20 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion) —
19 **Proposed remedy:** Strike.

20 **Declaration 10057589 (Meet-and-Confer)**

21 21. Obj. 21 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (best / secondary evidence)
22 — **Proposed remedy:** Strike.

23 22. Obj. 22 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
24 **Proposed remedy:** Strike.

25 23. Obj. 23 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (improper argument) —
26 **Proposed remedy:** Disregard.

27 24. Obj. 24 — **Page:line:** Throughout — **Ruling requested:** SUSTAIN (non-compliance with
28 CCP § 2015.5) — **Proposed remedy:** Disregard in full.

Dated: April 18, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the signature.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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